

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	22CV393909	<i>Sutter Bay Hospitals, et al.</i> <i>v.</i> <i>HCA Health Services of California, Inc., et al.</i>	Hearing on Verified Application of Stone T. Hendrickson to appear <i>pro hac vice</i> for Cross-Defendant Health Net of California, Inc. The Verified Application of Stone T. Hendrickson to appear <i>pro hac vice</i> for Cross-Defendant Health Net of California, Inc. is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Application. SO ORDERED
9:01 2			
9:01 3			
9:01 4			
9:01 5			
9:00 1	25CV472081	<i>Shaun Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Defendant City of San Jose's Demurrer to Plaintiffs' Complaint <i>See Line 1 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 <u>2</u>	21CV388088	<i>Heather Rhines</i> <i>v.</i> <i>Michael H. Scott, et al.</i>	Order on Defendant Sierra Corporate Management, Inc.'s Motion to Compel Further Responses to RFPs, Set One, and for Sanctions In light of the Notice of Settlement of Entire Case filed by Plaintiff on the eve of trial on September 8, 2026, this Motion is OFF CALENDAR . SO ORDERED.
9:00 <u>3</u>	24CV442743	<i>MV Campbell, LLC</i> <i>v.</i> <i>MOD Super Fast Pizza (California), LLC, et al.</i>	Order on Plaintiff's Motion to Compel Defendants to Respond to Plaintiff's Discovery Requests and for Sanctions See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	24CV436896	<i>Hassan Abpikar, et al.</i> <i>v.</i> <i>State Farm Insurance, et al.</i>	Order on Defendant State Farm General Insurance Company's Motion for Terminating Sanctions Or, Alternatively, Issue and Monetary Sanctions See Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	24CV453950	<i>Brett Johnson</i> <i>v.</i> <i>County of Santa Clara, et al.</i>	Order on Travelers Property Casualty Company of America's Motion for Leave to File Complaint in Intervention See Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 6			
9:00 7			
9:00 8			
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“Defendant” or “City”) demurs to the Complaint of Plaintiffs Shaun Allen Laliberte, individually and as successor in interest to Edward Alan Kirk, and Jacqueline Marie Kirk, individually and as successor in interest to Edward Alan Kirk (“Plaintiffs”) on its Third Cause of Action for Dangerous Condition of Public Property and Wrongful Death and the Fourth Cause of Action for Violation of Government Code Section 815 *et seq.* and Wrongful Death on the grounds that these causes of action are uncertain, ambiguous, and unintelligible, and fail to state facts sufficient to constitute a cause of action against the City. Code Civ. Proc. § 430.10(e)-(f). Notice of Demurrer (the “Demurrer”) at 1:28-2:6 (filed: July 28, 2026).¹

The Demurrer came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Background

Plaintiffs bring this action individually and as successor in interest to Edward Alan Kirk (“Decedent”). Decedent is Plaintiffs’ biological father. (Complaint, ¶¶ 1-2.) Plaintiffs name the following defendants: F.S. Trucking Company, Inc. (“FS Trucking”); Daniel Bonilla Estacio (“Estacio”); Martinez Granite & Marble, Inc. (“G&M”); Mauro Gaytian Martinez (“Martinez”); Francisco Martinez Antonio (“Antonio”); the City; County of Santa Clara (“the County”); State of California (“the State”); State of California Department of Transportation (“DoT”); Caltrans (the City, the County, the State, DoT, and Caltrans are collectively referred to as “Government Defendants”); Jayden Rowedda (“Rowedda”); and Edward Kirk Jr. (“Edward Jr.”) (collectively with Rowedda, “Nominal Defendants”). According to the allegations of the complaint, Decedent was killed in San Jose on August 29, 2024, when two vehicles, operated by Estacio and Martinez respectively, struck Decedent’s motorcycle (“Subject Crash”). (Complaint, ¶¶ 20-21.) Estacio was operating a vehicle in the course and scope of his employment with FS Trucking. (Complaint, ¶ 22.) Martinez was operating a separate vehicle in the course and scope of his employment with G&M, owned by Antonio. (Complaint, ¶ 23.)

On August 4, 2025, Plaintiffs initiated this action by filing the Complaint, asserting

¹ The Third and Fourth Causes of Action are the only causes of action in the Complaint that are made against Defendant City of San Jose.